

		<u>Merits</u> The Kannans seek discretionary relief based on their claimed mistake, inadvertence, and excusable neglect. The Kannans were served with the summons and Complaint in August 2025 and tried to find a lawyer over the ensuing months. (Declaration of Gutha Kannan (“Gutha Dec.”), ¶¶ 5-10; Declaration of Saina Kannan (“Saina Dec.”) ¶¶ 5-10.) The Kannans retained their counsel in November 2025, the same month in which their default was entered. (Gutha Dec. at ¶¶ 10-11; Saina Dec. at ¶¶ 10-11.) Plaintiffs’ counsel evidently indicated he would stipulate to setting aside the default but on the condition that the Kannans not file a Cross-Complaint. The Kannans have made a sufficient showing of inadvertence to warrant setting aside the default. While they should have responded to the Complaint earlier, they experienced difficulty in retaining an attorney. Plaintiffs Mid-Century Insurance Company and Truck Insurance Exchange contend that the proposed Cross-Complaint lacks merit and they seek an order prohibiting the Kannans from filing the same. The Court declines to do so. If Plaintiffs want to challenge a pleading, the Code of Civil Procedure provides several means to do so. The Kannans shall file their responsive pleading(s) within 10 days of this ruling. The Kannans shall give notice of this ruling.
11	Romero vs. Krieger	TENTATIVE RULING: <u>Motion for Leave to Amend</u> Plaintiff Juan Pablo Romero moves for leave to file a First Amended Complaint. For the following reasons, the unopposed motion is GRANTED. <u>Statement of Law</u> The Court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon

like terms, enlarge the time for answer or demurrer. (Code Civ. Proc. § 473(a)(1).) The Court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc. § 473(a)(1).) Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. (Code Civ. Proc. § 576.)

In relevant part, California Rules of Court, rule 3.1324 provides that:

- (a) Contents of a motion to amend a pleading before trial must:
 - (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
 - (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
 - (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.
- (b) Supporting declaration

A separate declaration must accompany the motion and must specify:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier.

California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. (*IMO Development Corp. v. Dow Corning* (1982) 135 Cal.App.3d 451, 461.) Thus, leave to amend to more clearly state a plaintiff's theories of liability should be liberally allowed. (*Rainer v. Buena Community Memorial Hospital* (1971) 18 Cal.App.3d 240, 253-254.) This liberality only applies so long as there is no prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564.) Denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the

opposing party is shown. This may happen where a proposed amendments opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. (*Estate of Murphy v. Gulf Ins. Co.* (1978) 82 Cal.App.3d 304, 311.)

“[I]t is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case. If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [internal citations and quotation marks omitted].)

Finally, the court generally does not consider the validity of the proposed amended pleadings in deciding whether to grant leave to amend. (The Rutter Group, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 6-E at 6:644.) After leave to amend is granted, the opposing party will have the opportunity to attack the validity of the amended pleading. (See *Kittredge Sports Co. v. Sup.Ct. (Marker, U.S.A.)* (1989) 213 CA3d 1045, 1048.)

Here, Plaintiff complied with CRC 3.1324.

Merits

Plaintiff seeks leave to amend the Complaint to add the Estate of Maria Teresa Romero as a Defendant and to add charging allegations against the Estate. The Estate allegedly has an interest in the property that is the subject of this lawsuit. (Ikeda Dec., ¶¶ 2-5.)

If delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case, even if sought as late as the time of trial. (*Higgins v. Del Faro* (1981) 123 CA3d 558, 564-565)

Defendant did not oppose the motion. As Plaintiff has complied with CRC 3.1324 and has met the requirements for seeking leave to amend, the motion is granted.

Plaintiff is ordered to file and serve the First Amended Complaint within 7 days of this ruling.

		Plaintiff shall give notice of this ruling.
12	Lydicks vs. Tran	CONTINUED TO 9/16/26
13	Orozco vs. Amador Hernandez	TENTATIVE RULING: For the reasons set forth below, Defendants David Sheng-Lin Yuan, Grace Yuan and Orange County Property Management, Inc.’s motion for summary judgment is DENIED. Moving Defendants’ motion for summary adjudication is GRANTED as to the second cause of action for strict liability, only, and DENIED as to the remaining causes of action for negligence and punitive damages. Plaintiff Lisa Kathleen Orozco’s objections are OVERRULED. <u>Statement of Law</u> “Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at 851.) A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 850-51.) However, “[t]he defendant must indeed present evidence.” (<i>Aguilar, supra</i>, 25 Cal.4th at 855, italics original.) In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (<i>Carlsen v. Koivumaki</i> (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.)